

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **Eldercare Locator** — call 1-800-677-1116 (<https://eldercare.acl.gov>)
- **Adult Protective Services** — call Contact your local APS agency
- **Stalking Prevention, Awareness, and Resource Center (SPARC)** (<https://www.stalkingawareness.org>)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

Asking a court to protect you. If someone has hurt you or made you afraid, you can ask a court for an **Order for Protection** (sometimes called a

restraining order). It is a free request you can make yourself: the court clerk's office or a local advocate can give you the forms and walk you through them, often the same day. A domestic violence advocate (reachable through the hotline above) can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

⚠ **There is an appointment on July 16th where I am supposedly supposed to sign listing papers.**

- **Estimated deadline:** 2026-07-16
- **Basis:** The court's own summons, hearing notice, or scheduling order setting this date — a court's order or summons is the governing primary authority for a court-scheduled appearance (confirm the date against the document itself).
- **Triggering event:** hearing on 2026-07-16
- **Jurisdiction:** MN

- This is a date the court gave you directly (a hearing, court date, or stated deadline). Estimated — confirm the exact date with the court or a lawyer.

⚠ **The bank sent a letter dated June 26th saying they flagged unusual activity.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** deadline on 2026-07-06
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **I asked Dale about the boat on June 14th. Dale grabbed my wrist hard enough to leave a bruise.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-06-14
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

Executive Summary

This intake revealed 14 possible legal issues in Minnesota. The most strongly supported concerns are Breach of Fiduciary Duty (when someone in a position of trust fails to act in the best interest of another), Undue Influence / Lack of Capacity (when someone is pressured into making decisions they may not fully understand), and Possible Invalidity of Power

of Attorney (when a legal document that allows someone to act on another's behalf might not be valid).

There is a deadline coming up: an appointment is set for July 16th, when I am expected to sign listing papers. [This date comes from a court order or notice, which is the official document that dictates when I need to appear (it's important to check this date against the actual document).] There are safety concerns noted in this situation; see the safety resources below. The analysis is 75% complete, and there are 15 follow-up questions listed below that could help improve the assessment.

Completeness Score: 75%

Untitled Intake

Generated: 2026-07-11 21:44 UTC

Matter ID: 236

Run ID: 66

Completeness: 75%

General

| Breach of Fiduciary Duty

Claim Type: discovered | **Confidence:** 90%

FOLIO IRI: <https://folio.openlegalstandard.org/RtmRdqzdG4lddVrtCToiL1>

ISSUE

Dale's actions, like taking a lot of money out of Lorraine's account without her permission, suggest that he may have violated his fiduciary duty (the

legal responsibility to act in someone else's best interests), which is important to examine when looking at whether his behavior as her representative was appropriate.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Fiduciary Duty' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Is there a formal complaint or legal action initiated regarding Dale's breach of fiduciary duty as her agent, and has this been evaluated by a legal professional?

CONCLUSION

No elements defined

| Possible Invalidity of Power of Attorney

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RBxR7hcvIRuO4hydhUq8Plm>

ISSUE

Since Lorraine was healing from hip surgery and taking pain medication, this brings up concerns about her mental clarity and whether she fully understood the terms of the power of attorney (a legal document that allows someone to act on another's behalf) when she signed it.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Possibility of Forced Relinquishment of Property

Claim Type: discovered | **Confidence:** 80%

ISSUE

Dale's attempt to list Lorraine's house for sale without her permission shows possible pressure tactics and has serious consequences for Lorraine's ownership rights. This situation requires legal action to stop any forced sale of her property.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Possibility of Forced Relinquishment of Property' has not been explored with fact mappings

CONCLUSION

No elements defined

| Invalid Power of Attorney

Claim Type: discovered | **Confidence:** 75%

ISSUE

Signing while taking pain medication and feeling emotional pressure could make the power of attorney (a legal document allowing someone to act on another's behalf) invalid or hard to enforce.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Has any legal assessment been made regarding the validity of the power of attorney considering Lorraine's state of mind at the time it was executed?

CONCLUSION

No elements defined

| Negligence by Financial Institution

Claim Type: discovered | **Confidence:** 70%

FOLIO IRI: <https://folio.openlegalstandard.org/R7nqxxlAfhYqqSA2UQ5UxpX>

ISSUE

Under Minnesota law, the bank is required to report any suspicions of financial exploitation. If the bank failed to do this in a timely way, it could lead to a claim of negligence (a failure to take proper care).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Negligence by Financial Institution' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Was the financial institution notified about the suspicious withdrawals, and did they fulfill their reporting obligations under Minnesota law promptly?

CONCLUSION

No elements defined

| Intimidation and Coercion

Claim Type: discovered | **Confidence:** 60%

FOLIO IRI: <https://folio.openlegalstandard.org/RBE78Mm4K5ZmjzUOnFO2eg4>

ISSUE

The reported threat to Lorraine's well-being if she keeps asking about her finances shows a kind of psychological control that needs to be looked at from a legal perspective.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Intimidation and Coercion' has not been explored with fact mappings

CONCLUSION

No elements defined

| Unlawful Search and Seizure

Claim Type: discovered | **Confidence:** 40%

ISSUE

The fact that Dale checks the mail before Lorraine and manages her finances might violate her personal rights and privacy (which is the assurance that one's personal life is kept private) in a legal context.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Unlawful Search and Seizure' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Vulnerable Adult Protection Claims:** 40% confidence
- **Assault or Threatening Behavior:** 10% confidence
- **Potential Financial Abuse Allegations:** 10% confidence

Minnesota

Undue Influence / Lack of Capacity

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/R9kRdeC3m6NEz0zOxotAueb>

ISSUE

Lorraine was taking pain medication when she signed the power of attorney (a legal document that gives someone else the authority to act on her behalf). This brings up doubts about her mental capacity (her ability to understand what she was doing) and whether Dale may have influenced her decision.

RULE

No authorities identified for this claim.

APPLICATION

- **Undue Influence:** Unsupported - The execution of the power of attorney must not have been the result of undue influence by the attorney-in-fact.

- **Mental Capacity:** Supported (85% confidence) - The principal must have the mental capacity to understand the nature and consequences of the power of attorney.
 - Fact: Lorraine was on pain pills when she signed the power of attorney. (85% match)
 - Fact: Lorraine confirms her mind is fine. (85% match)
- **Existence of Power of Attorney:** Supported (85% confidence) - A validly executed power of attorney document must exist.
 - Fact: My pension from Frank's union goes into the checking account. (85% match)
 - Fact: Lorraine owns her house on Arcade Street in St. Paul. (85% match)
 - Fact: Lorraine signed the power of attorney on December 8th. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 85): Element 'Undue Influence' is not yet supported by any facts
 - Element: Undue Influence
- **Procedural Requirement** (Priority 50): Was Lorraine's mental capacity assessed by a medical professional at the time she signed the power of attorney, and are there records indicating her state of mind?

CONCLUSION

2 of 3 elements supported (57% confidence)

Litigation Criminal Defenses

Claim Type: discovered | **Confidence:** 10%

Related to: Undue Influence / Lack of Capacity

ISSUE

Found through exploring the FOLIO ontology (a structured framework for organizing information) related to Undue Influence (pressure that prevents someone from making their own decisions) and Lack of Capacity (not being able to understand or make decisions legally) at a basic level (depth 1).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Criminal Defenses' has not been explored with fact mappings

CONCLUSION

No elements defined

| Litigation Defenses

Claim Type: discovered | **Confidence:** 10%

Related to: Undue Influence / Lack of Capacity

ISSUE

Found through exploring the FOLIO ontology (a structured framework for organizing information) related to Undue Influence (pressure that prevents someone from making their own decisions) and Lack of Capacity (not being able to understand or make decisions legally) at a basic level (depth 1).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Defenses' has not been explored with fact mappings

CONCLUSION

No elements defined

| Financial Exploitation of a Vulnerable Adult

Claim Type: discovered | **Confidence:** 40%

ISSUE

The strange withdrawals and transfers from Lorraine's account, combined with her not approving these transactions, indicate possible financial abuse.

RULE

No authorities identified for this claim.

APPLICATION

- **Vulnerable Adult Status:** Supported (85% confidence) - The individual must be considered a vulnerable adult under Minnesota law.
 - Fact: Lorraine is 79 years old. (85% match)
 - Fact: Lorraine has been widowed since 2019. (85% match)

- **Unauthorized Transactions:** Supported (85% confidence) - Transactions must have occurred that were not authorized by the vulnerable adult.
 - Fact: Dale calls the transfers to his own account 'caregiver pay'. (85% match)
 - Fact: We never once agreed to the 'caregiver pay'. (85% match)
 - Fact: Lorraine did not make or approve ATM withdrawals since January. (85% match)
 - Fact: From January to June, Lorraine made six online transfers of \$500 to Dale's account. (85% match)
 - Fact: Dale took my debit card to do the shopping and never gave it back. (85% match)
 - Fact: Lorraine has a checking account at Prairie Sky Bank. (85% match)
 - Fact: The pattern of activity includes recurring high-value ATM cash withdrawals. (78% match)
- **Financial Loss:** Supported (85% confidence) - The vulnerable adult must have suffered a financial loss due to the unauthorized transactions.
 - Fact: By my figuring, about \$14,000 is gone since January. (85% match)
 - Fact: As of January 1, 2026, the balance in Lorraine's checking account was \$21,940.18. (85% match)
 - Fact: Every week, seven, eight, nine hundred dollars is being withdrawn. (85% match)
 - Fact: My Social Security goes into the checking account. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Have the unusual withdrawals and transfers been reported to the appropriate

authorities as potential financial exploitation under Minnesota law?

CONCLUSION

3 of 3 elements supported (85% confidence)

| Assault

Claim Type: discovered | **Confidence:** 30%

ISSUE

Dale grabbed Lorraine's wrist firmly enough to cause a bruise, which shows he was physically aggressive.

RULE

No authorities identified for this claim.

APPLICATION

- **Causation:** Unsupported - The defendant's actions must have directly caused the harmful or offensive contact.
- **Intent:** Supported (85% confidence) - The defendant must have intended to cause an offensive or harmful contact.
 - Fact: Dale grabbed my wrist hard enough to leave a bruise. (85% match)
 - Fact: Dale threatened me by saying if I keep asking questions I'll 'end up at Ridgeview.' (85% match)
- **Contact:** Supported (85% confidence) - There must have been contact with the plaintiff's body that is harmful or offensive.
 - Fact: Dale grabbed my wrist hard enough to leave a bruise. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 30): Element 'Causation' is not yet supported by any facts
 - Element: Causation
- **Procedural Requirement** (Priority 50): Was a police report filed regarding the incident where Dale grabbed Lorraine's wrist, and are there any witnesses or evidence corroborating this claim?

CONCLUSION

2 of 3 elements supported (57% confidence)

| Emotional Distress

Claim Type: discovered | **Confidence:** 30%

ISSUE

Lorraine's fear of speaking in her own home and the yelling from Dale show that she is experiencing emotional distress (a type of mental suffering) because of his behavior.

RULE

No authorities identified for this claim.

APPLICATION

- **Extreme and Outrageous Conduct:** Supported (85% confidence) - The conduct of the defendant must be extreme and outrageous.
 - Fact: Since then, I'm afraid to say anything in my own house. (85% match)
 - Fact: Dale yells so much that the neighbor asked me about it. (85% match)

- **Intent or Recklessness:** Unsupported - The defendant must have intended to cause emotional distress or acted recklessly.
- **Causation:** Supported (85% confidence) - There must be a direct connection between the defendant's conduct and the plaintiff's emotional distress.
 - Fact: Dale yells so much that the neighbor asked me about it. (85% match)
- **Severe Emotional Distress:** Supported (85% confidence) - The plaintiff must have suffered severe emotional distress as a result.
 - Fact: Since then, I'm afraid to say anything in my own house. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 30): Element 'Intent or Recklessness' is not yet supported by any facts
 - Element: Intent or Recklessness
- **Procedural Requirement** (Priority 50): Has Lorraine documented instances of emotional distress, and are there any mental health records that reflect her condition due to Dale's actions over time?

CONCLUSION

3 of 4 elements supported (64% confidence)

Triage & Routing Recommendations

Primary Practice Area: General Civil

Primary Jurisdiction: General

Complexity: High

Urgency: Emergency

Ranked Recommendations

1. General Civil (Score: 0.59)

General Civil practice area (82% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	82%
Jurisdiction Match	64%
Complexity Score	20%

2. Public Benefits (Score: 0.36)

Public Benefits practice area (18% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	18%
Jurisdiction Match	64%
Complexity Score	20%

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Undue Influence' is not yet supported by any facts
 - **Claim:** Undue Influence / Lack of Capacity
 - **Element:** Undue Influence

- [] **[HELPFUL]** Element 'Causation' is not yet supported by any facts
 - **Claim:** Assault
 - **Element:** Causation
- [] **[HELPFUL]** Element 'Intent or Recklessness' is not yet supported by any facts
 - **Claim:** Emotional Distress
 - **Element:** Intent or Recklessness

Follow-up Steps

- [] **[URGENT]** Confirm the deadline for: There is an appointment on July 16th where I am supposedly supposed to sign listing papers. (estimated 2026-07-16; The court's own summons, hearing notice, or scheduling order setting this date — a court's order or summons is the governing primary authority for a court-scheduled appearance (confirm the date against the document itself).). This is a date the court gave you directly (a hearing, court date, or stated deadline). Estimated — confirm the exact date with the court or a lawyer.
 - **Deadline:** 2026-07-16
- [] **[URGENT]** You asked if you can 'undo' the power of attorney. Yes — as long as your mind is clear, you can revoke it at any time with a signed, dated writing, and it takes effect against others (like the bank) once they actually get notice (Minn. Stat. § 523.11). The key step is delivering written revocation to BOTH your son and the bank right away. Would you like help doing that this week? [Authority: Minn. Stat. § 523.11, subd. 1 (a competent principal may revoke a power of attorney by a signed, dated writing; effective as to a third party on actual notice)]
- [] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the

- same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [] **[URGENT]** Because you may be a 'vulnerable adult' (relying on your son for care after surgery), there is a special court order that can quickly FREEZE the account draining and block the house sale — an Order for Protection Against Financial Exploitation of a Vulnerable Adult (Minn. Stat. § 609.2334), which a judge can issue right away in an emergency. This can also be reported to the state (MAARC, Minn. Stat. § 626.557). Would you like to ask the court for this before the July 16 appointment? [Authority: Minn. Stat. § 609.2334 (Order for Protection Against Financial Exploitation of a Vulnerable Adult — ex parte relief available); Minn. Stat. § 626.557 (vulnerable-adult reporting / MAARC)]
 - [] **[URGENT]** Even under a power of attorney, your son could pay himself or transfer your money to himself ONLY if the document specifically allowed it (Minn. Stat. § 523.24) — if that box was left blank, those transfers and the 'caregiver pay' likely exceeded his authority, revocation or not. A missing notary can also make the whole POA invalid (Minn. Stat. § 523.01). Do you have the actual POA document so a lawyer can check what was and wasn't authorized? [Authority: Minn. Stat. § 523.24 (statutory short-form POA authorizes self-gifting/self-transfers only if expressly elected); Minn. Stat. § 523.01 (valid POA requires acknowledgment)]
 - [] **[URGENT]** Your son grabbed your wrist hard enough to bruise and threatened you in your own home. Because he is a family/ household member, you can ask for an Order for Protection that a judge can grant the same day (Minn. Stat. § 518B.01); a Harassment Restraining Order (Minn. Stat. § 609.748) is a backup. This is separate from the money issues. Do you have the photo of the bruise and would you feel safer with such an order? [Authority: Minn. Stat. § 518B.01 (Order for Protection — a son

- living in the home is a family/household member; ex parte relief); Minn. Stat. § 609.748 (Harassment Restraining Order fallback)]
- [] **[URGENT]** You mentioned paying extra money (like a cash pet deposit) with no receipt. Deposits are regulated — in Minnesota the landlord must account for them, pay interest, and return them with an itemized statement (Minn. Stat. § 504B.178); other states have an equivalent. A cash payment with no receipt can still count. How much did you pay, when, and do you have any proof (texts, witnesses, bank withdrawal)? [Authority: Minn. Stat. § 504B.178 (security deposits: receipt, interest, return); § 504B.172]
 - [] **[IMPORTANT]** Potential claim 'Litigation Criminal Defenses' has not been explored with fact mappings
 - **Claim:** Litigation Criminal Defenses
 - [] **[IMPORTANT]** Potential claim 'Litigation Defenses' has not been explored with fact mappings
 - **Claim:** Litigation Defenses
 - [] **[IMPORTANT]** Potential claim 'Breach of Fiduciary Duty' has not been explored with fact mappings
 - **Claim:** Breach of Fiduciary Duty
 - [] **[IMPORTANT]** Potential claim 'Negligence by Financial Institution' has not been explored with fact mappings
 - **Claim:** Negligence by Financial Institution
 - [] **[IMPORTANT]** Potential claim 'Intimidation and Coercion' has not been explored with fact mappings
 - **Claim:** Intimidation and Coercion
 - [] **[IMPORTANT]** Potential claim 'Unlawful Search and Seizure' has not been explored with fact mappings
 - **Claim:** Unlawful Search and Seizure

- [] **[IMPORTANT]** Potential claim 'Possibility of Forced Relinquishment of Property' has not been explored with fact mappings
 - **Claim:** Possibility of Forced Relinquishment of Property
- [] **[IMPORTANT]** Potential claim 'Assault or Threatening Behavior' has not been explored with fact mappings
 - **Claim:** Assault or Threatening Behavior
- [] **[IMPORTANT]** Potential claim 'Vulnerable Adult Protection Claims' has not been explored with fact mappings
 - **Claim:** Vulnerable Adult Protection Claims
- [] **[IMPORTANT]** Was Lorraine's mental capacity assessed by a medical professional at the time she signed the power of attorney, and are there records indicating her state of mind?
 - **Claim:** Undue Influence / Lack of Capacity
- [] **[IMPORTANT]** Have the unusual withdrawals and transfers been reported to the appropriate authorities as potential financial exploitation under Minnesota law?
 - **Claim:** Financial Exploitation of a Vulnerable Adult
- [] **[IMPORTANT]** Was a police report filed regarding the incident where Dale grabbed Lorraine's wrist, and are there any witnesses or evidence corroborating this claim?
 - **Claim:** Assault
- [] **[IMPORTANT]** Has Lorraine documented instances of emotional distress, and are there any mental health records that reflect her condition due to Dale's actions over time?
 - **Claim:** Emotional Distress
- [] **[IMPORTANT]** Is there a formal complaint or legal action initiated regarding Dale's breach of fiduciary duty as her agent, and has this been evaluated by a legal professional?
 - **Claim:** Breach of Fiduciary Duty

- [] **[IMPORTANT]** Has any legal assessment been made regarding the validity of the power of attorney considering Lorraine's state of mind at the time it was executed?
 - **Claim:** Invalid Power of Attorney
- [] **[IMPORTANT]** Was the financial institution notified about the suspicious withdrawals, and did they fulfill their reporting obligations under Minnesota law promptly?
 - **Claim:** Negligence by Financial Institution
- [] **[IMPORTANT]** Have reports been made to the Adult Abuse Reporting Center regarding Lorraine's situation, and what was the outcome of those reports?
 - **Claim:** Potential Financial Abuse Allegations

Gap Report Appendix

Overall Completeness: 75%

[===== - - - -] 75%

Assault

- **Unsupported Element** (Priority 30): Element 'Causation' is not yet supported by any facts
 - Element: Causation
 - See Action Item #26
- **Procedural Requirement** (Priority 50): Was a police report filed regarding the incident where Dale grabbed Lorraine's wrist, and are there any witnesses or evidence corroborating this claim?
 - See Action Item #20

Assault or Threatening Behavior

- **Unexplored Claim** (Priority 50): Potential claim 'Assault or Threatening Behavior' has not been explored with fact mappings
 - See Action Item #16

Breach of Fiduciary Duty

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Fiduciary Duty' has not been explored with fact mappings
 - See Action Item #11
- **Procedural Requirement** (Priority 50): Is there a formal complaint or legal action initiated regarding Dale's breach of fiduciary duty as her agent, and has this been evaluated by a legal professional?
 - See Action Item #22

Emotional Distress

- **Unsupported Element** (Priority 30): Element 'Intent or Recklessness' is not yet supported by any facts
 - Element: Intent or Recklessness
 - See Action Item #27
- **Procedural Requirement** (Priority 50): Has Lorraine documented instances of emotional distress, and are there any mental health records that reflect her condition due to Dale's actions over time?
 - See Action Item #21

Financial Exploitation of a Vulnerable Adult

- **Procedural Requirement** (Priority 50): Have the unusual withdrawals and transfers been reported to the appropriate

authorities as potential financial exploitation under Minnesota law?

- See Action Item #19

Intimidation and Coercion

- **Unexplored Claim** (Priority 50): Potential claim 'Intimidation and Coercion' has not been explored with fact mappings

- See Action Item #13

Invalid Power of Attorney

- **Procedural Requirement** (Priority 50): Has any legal assessment been made regarding the validity of the power of attorney considering Lorraine's state of mind at the time it was executed?

- See Action Item #23

Litigation Criminal Defenses

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Criminal Defenses' has not been explored with fact mappings

- See Action Item #9

Litigation Defenses

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Defenses' has not been explored with fact mappings

- See Action Item #10

Negligence by Financial Institution

- **Unexplored Claim** (Priority 50): Potential claim 'Negligence by Financial Institution' has not been explored with fact mappings

- See Action Item #12

- **Procedural Requirement** (Priority 50): Was the financial institution notified about the suspicious withdrawals, and did they fulfill their reporting obligations under Minnesota law promptly?
 - See Action Item #24

Possibility of Forced Relinquishment of Property

- **Unexplored Claim** (Priority 50): Potential claim 'Possibility of Forced Relinquishment of Property' has not been explored with fact mappings
 - See Action Item #15

Potential Financial Abuse Allegations

- **Procedural Requirement** (Priority 50): Have reports been made to the Adult Abuse Reporting Center regarding Lorraine's situation, and what was the outcome of those reports?
 - See Action Item #25

Uncategorized

- **Procedural Requirement** (Priority 90): What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
 - See Action Item #4
- **Procedural Requirement** (Priority 82): You mentioned paying extra money (like a cash pet deposit) with no receipt. Deposits are regulated — in Minnesota the landlord must account for them, pay interest, and return them with an itemized statement (Minn. Stat.

§ 504B.178); other states have an equivalent. A cash payment with no receipt can still count. How much did you pay, when, and do you have any proof (texts, witnesses, bank withdrawal)?

[Authority: Minn. Stat. § 504B.178 (security deposits: receipt, interest, return); § 504B.172]

◦ See Action Item #8

- **Procedural Requirement** (Priority 92): You asked if you can 'undo' the power of attorney. Yes — as long as your mind is clear, you can revoke it at any time with a signed, dated writing, and it takes effect against others (like the bank) once they actually get notice (Minn. Stat. § 523.11). The key step is delivering written revocation to BOTH your son and the bank right away. Would you like help doing that this week? [Authority: Minn. Stat. § 523.11, subd. 1 (a competent principal may revoke a power of attorney by a signed, dated writing; effective as to a third party on actual notice)]

◦ See Action Item #3

- **Procedural Requirement** (Priority 88): Even under a power of attorney, your son could pay himself or transfer your money to himself ONLY if the document specifically allowed it (Minn. Stat. § 523.24) — if that box was left blank, those transfers and the 'caregiver pay' likely exceeded his authority, revocation or not. A missing notary can also make the whole POA invalid (Minn. Stat. § 523.01). Do you have the actual POA document so a lawyer can check what was and wasn't authorized? [Authority: Minn. Stat. § 523.24 (statutory short-form POA authorizes self-gifting/self-transfers only if expressly elected); Minn. Stat. § 523.01 (valid POA requires acknowledgment)]

◦ See Action Item #6

- **Procedural Requirement** (Priority 90): Because you may be a 'vulnerable adult' (relying on your son for care after surgery), there is a special court order that can quickly FREEZE the account draining and block the house sale — an Order for

Protection Against Financial Exploitation of a Vulnerable Adult (Minn. Stat. § 609.2334), which a judge can issue right away in an emergency. This can also be reported to the state (MAARC, Minn. Stat. § 626.557). Would you like to ask the court for this before the July 16 appointment? [Authority: Minn. Stat. § 609.2334 (Order for Protection Against Financial Exploitation of a Vulnerable Adult — ex parte relief available); Minn. Stat. § 626.557 (vulnerable-adult reporting / MAARC)]

- See Action Item #5

- **Procedural Requirement** (Priority 88): Your son grabbed your wrist hard enough to bruise and threatened you in your own home. Because he is a family/household member, you can ask for an Order for Protection that a judge can grant the same day (Minn. Stat. § 518B.01); a Harassment Restraining Order (Minn. Stat. § 609.748) is a backup. This is separate from the money issues. Do you have the photo of the bruise and would you feel safer with such an order? [Authority: Minn. Stat. § 518B.01 (Order for Protection — a son living in the home is a family/household member; ex parte relief); Minn. Stat. § 609.748 (Harassment Restraining Order fallback)]

- See Action Item #7

Undue Influence / Lack of Capacity

- **Unsupported Element** (Priority 85): Element 'Undue Influence' is not yet supported by any facts
 - Element: Undue Influence
 - See Action Item #1
- **Procedural Requirement** (Priority 50): Was Lorraine's mental capacity assessed by a medical professional at the time she signed the power of attorney, and are there records indicating her state of mind?

- See Action Item #18

Unlawful Search and Seizure

- **Unexplored Claim** (Priority 50): Potential claim 'Unlawful Search and Seizure' has not been explored with fact mappings
 - See Action Item #14

Vulnerable Adult Protection Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Vulnerable Adult Protection Claims' has not been explored with fact mappings
 - See Action Item #17

Open Questions

1. Do you have the actual Power of Attorney document? This will help a lawyer check if any actions taken by your son were allowed.
2. Would you like help to write a revocation of the Power of Attorney and send it to both your son and the bank this week?
3. Has Lorraine's mental capacity been assessed by a medical professional when she signed the Power of Attorney?
4. Would you like to ask the court for an Order for Protection Against Financial Exploitation of a Vulnerable Adult before your appointment?
5. Have you reported the unusual withdrawals and transfers to the appropriate authorities as potential financial exploitation?
6. Do you have any photographs of the bruise, and would you feel safer if you had an Order for Protection?
7. Would you like information to help you file for an Order for Protection now, separate from other legal matters?
8. How much did you pay in cash for the pet deposit, and do you have any proof of that payment such as texts or bank statements?
9. Do you have the actual power of attorney document so we can check what was allowed in it?

10. Have the unusual withdrawals and transfers been reported to the appropriate authorities as potential financial exploitation under Minnesota law?
11. Do you have a photo of the bruise, and would you feel safer with an Order for Protection?
12. Would you like assistance in applying for an Order for Protection or an Order for Protection Against Financial Exploitation immediately?
13. Was Lorraine's mental capacity assessed by a medical professional at the time she signed the power of attorney?
14. Have you documented any instances of emotional distress caused by Dale, and are there any mental health records that reflect your condition over time?
15. Was a police report filed regarding the incident where Dale grabbed Lorraine's wrist?